

1 July 2019

Former Truman Brewery, Stour Road

in the London Legacy Development Corporation

planning application no. 19/00185/FUL

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Mixed use redevelopment comprising construction of a new building ranging in height from five to seven storeys to provide 1,908 sqm of commercial space (B1c) and yard, 330 student rooms provision of podium amenity space, along with public realm improvements.

The applicant

The applicant is **Southern Grove Hackney Wick Limited**, the architect is **Henley Halebrown**.

Strategic issues

Principle of development: The redevelopment of the site to provide student housing together with a net increase in industrial floorspace is supported subject to the applicant demonstrating that the introduction of student housing would not compromise the ongoing function of the industrial uses in and around the site and the student housing incorporates adequate mitigation against any adverse impacts. A dedicated loading bay area for the industrial building must be provided. The applicant is required to enter into a nominations agreement with a named Higher Education Provider. (paragraphs 13- 29)

Affordable student housing: The development proposes 35% affordable student housing. Currently, the scheme would result in compromised industrial capacity whereby the Fast Track Route threshold would be 50%. As such the application would be subject to the Viability Tested Route with both early and late stage review mechanisms secured within the s106 unless a suitably sized dedicated loading bay area is provided. (paragraphs 30 – 37)

Transport: A contribution to public realm improvements and wayfinding will be required. A section 278 agreement would need to be entered into to deal with changes to crossovers and footways. The cycle parking should be designed to London Cycle Parking Design standards and the cycle parking provision for the student element increased to provide 330 long stay and 10 short stay spaces, as well as space for oversized bicycles as well as site access and servicing matters. A plan should be prepared to manage the impact of students moving in and out. (paragraphs 49 – 56)

Outstanding issues relating to **urban design** (paragraphs 39-38), **inclusive design** (paragraph 42), **energy** (paragraph 43), **drainage** (paragraphs 44-47) and **urban greening** (paragraph 48) would also need to be addressed.

Recommendation

That the LLDC be advised that the application does not yet comply with the London Plan, for the reasons set out in paragraph 60 of this report; but that the possible remedies set out in that paragraph could address these deficiencies.

Context

1 On 20 May 2019, the Mayor of London received documents from the LLDC notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008, the Mayor has to provide the LLDC with a statement setting out whether he considers that the application complies with the London plan and the reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A of the Schedule to the 2008 Order:

- 1A – *“Development which comprises or includes the provision of more than 150 houses, flats or houses and flats.”*

3 Once the LLDC has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; or allow the LLDC to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The site is approximately 0.3 hectares in size and is located on Fish Island. It is bounded by Stour Road to the south, industrial buildings to the east, Beachy Road to the north and Smeed Road to the west. Half of the site is occupied by six single storey industrial buildings and the remainder of the site laid out as associated yard space and parking. Access to the site is gained from Stour Road.

6 The Fish Island and White Post Lane Conservation Area is located immediately adjacent and opposite from the development to the south of Stour Road. Although there are no listed buildings within the conservation area at present, a number of buildings in the vicinity of the site are identified as heritage assets in the LLDC's conservation area appraisal including Broadwood's piano factory to the east and the Wick Lane Rubber Works and Algha Works to the south of the site.

7 The nearest bus stops are located 200 metres to the west of the site, served by three services. London Overground services are available from Hackney Wick station, located 800 metres to the north of the site. The closest Underground and National Rail station is Stratford regional, 1.3 kilometres to the east of the site. A Mayor's Cycle Hire docking station is available 250 metres to the north east to the site. The site currently has been calculated to have a Public Transport Accessibility Level (PTAL) of 2, on a scale of 0 to 6b where 6b is the highest.

Details of the proposal

8 The proposals include the demolition of the existing buildings and construction of two new buildings ranging in height from five to seven storeys to provide 1,855 sq.m. GIA of commercial space (B1c) and yard, 330 student rooms (Use Class Sui Generis) provision of podium amenity space, along with public realm improvements.

Case history

9 No pre-application discussions were held with GLA officers prior to submission.

Strategic planning issues and relevant policies and guidance

10 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the LLDC's Local Plan (July 2015) and the London Plan (Consolidated with Alterations since 2011) (2016).

11 The following are also relevant material considerations:

- The National Planning Policy Framework and National Planning Practice Guidance.
- The draft London Plan (2017) incorporating the Mayor's August 2018 Minor Suggested Changes which should be taken into account on the basis explained in the NPPF.
- LLDC's Publication draft Revised Local Plan (November 2018).
- Hackney Wick and Fish Island SPD (March 2018).
- Fish Island and White Post Lane Management Guidelines (March 2015)

12 The relevant issues and corresponding policies are as follows:

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|-----------------------------|---|
| • Industrial land | <i>London Plan; Land for Industry and Transport SPG; Industrial Intensification Primer;</i> |
| • Student housing | <i>London Plan; Housing SPG; Housing Strategy; Affordable Housing and Viability SPG;</i> |
| • Urban design and heritage | <i>London Plan; Shaping Neighbourhoods: Character and Context SPG;</i> |
| • Inclusive design | <i>London Plan; Accessible London: achieving an inclusive environment SPG</i> |
| • Energy and drainage | <i>London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;</i> |
| • Transport | <i>London Plan; the Mayor's Transport Strategy; Crossrail SPG.</i> |

Principle of development

Industrial use

13 The existing site currently accommodates 1,420 sq.m. of mixed industrial floorspace (B1c/B2/B8) but does not form part of a Strategic Industrial Land (SIL) or Locally Significant Industrial Site (LSIS) designation. In accordance with the Policy E4 of the draft London Plan, the site would therefore constitute Non-Designated Industrial Site (NDIS). The draft London Plan Policy E4 seeks to maintain a sufficient supply of industrial land and premises for industrial and related functions across SIL, LSIS and NDIS with no overall net loss of industrial floorspace capacity.

14 In this regard, the proposals seek the re-provision of 1,855 sq.m. (GIA)/2,165 sq.m. (GEA) of industrial floorspace (B1c) in a new 5 storey building and at the ground floor of the student housing block. This represents a net increase in industrial floorspace over that currently provided on site, which is strongly supported in principle in line with Policy 4.4 of the London Plan and Policy E4 of the draft London Plan.

15 However, whilst scheme would provide a net increase in the existing industrial floorspace on site and would also exceed the 65% plot ratio threshold, draft London Plan paragraph 6.4.5AA also stipulates that, when applying the principle of no net loss of industrial floorspace capacity, regard should also be given to the characteristics and operational requirements of the different industrial uses. Dedicated yard space is an essential requirement for most industrial, logistics and related uses to support servicing, storage and operational needs. Development proposals should therefore ensure that sufficient yard space is provided having regard to the operational requirements of the uses proposed.

16 In this regard, the proposed servicing and delivery provisions for the industrial building are not satisfactory and would need to be revised in order to support a typical light industrial occupier. Servicing and deliveries are proposed to take place from the access road only. No dedicated loading bay is proposed to be provided. The access road is also the only means of access to the proposed disabled parking bays. A dedicated loading bay of sufficient size must be accommodated within the development. This is vital to the success of the industrial element of the scheme.

17 Notwithstanding this, it is positive to note that the industrial building has been designed with reference to the Industrial Intensification and Co-location Study produced by We Made That. The applicant has confirmed that the proposed industrial building would have a floor to ceiling height of 3.7m and a minimum floor to underside of down stand beams and services height of 3.3m. A generous goods lift would also be provided.

18 The applicant is assisting in the relocation of the remaining tenants on site, which is welcomed.

19 Given that the proposals would involve the co-location of industrial uses with student housing, the provisions of draft London Plan Policies E7 and D12 would apply in the same way as C3 residential. As such, the applicant would need to demonstrate that the industrial and related activities on site or in the surroundings are not compromised in terms of their continued efficient function, access, service arrangements, and days/ hours of operation noting that many businesses have 7-day / 24 hour access and operational requirements; and the intensified industrial is completed in advance of the student housing being occupied.

20 Further detail is required to demonstrate how the scheme has employed appropriate design mitigation within the student housing element to ensure compliance with the above, with particular consideration given to safety and security, the layout, orientation, access, and delivery arrangements of the uses in order to minimise conflict; design quality, public realm, visual impact and amenity for residents; agent of change principles; vibration and noise; and air quality including dust, odour and emissions.

Student housing

21 London Plan Policy 3.8 relating to housing choice, seeks to ensure that requirements for student housing meeting a demonstrable need are addressed by working closely with stakeholders in higher and further education and without compromising capacity for conventional homes. Policy relating to student accommodation has been further developed within the draft London Plan. Draft Policy H17 (Part A) seeks to ensure that local and strategic need for purpose-built student accommodation is addressed, provided that: at the neighbourhood level, the development contributes to a mixed and inclusive neighbourhood; the use of the accommodation is secured for students; the accommodation is secured through a nomination agreement for occupation by students of one or more higher education provider; the maximum level of accommodation is secured as affordable student accommodation as defined

through the London Plan and associated guidance; and the accommodation provides adequate functional living space and layout.

22 In addition, draft Policy H17 (Part B) encourages boroughs, student accommodation providers and higher education providers to develop student accommodation in locations well-connected to local services by walking, cycling and public transport, as part of mixed-use regeneration and redevelopment schemes.

23 The proposed development is within an area which, until recently, is predominantly industrial in nature. However, the character of the locality has changed significantly in recent years with the development of a number of residential schemes in the area. There are only two dedicated student housing developments in the LLDC area, these are both located on the western side of the planning authority area. As such, the development would contribute to a mixed and inclusive neighbourhood.

24 In respect of student housing need, the applicant has prepared a robust demand study which indicates that there is a significant demand for student accommodation in the area owing in part to the development of two new campuses within the LLDC area and projected increase in students from the local area attending Queen Mary University. Furthermore, circa 77% of students within the one mile catchment area of the site are unable to access university or private purpose built student accommodation.

25 The applicant commits to securing the proposed student accommodation by way of planning obligation to ensure it remains as such in perpetuity. The developer has not yet entered into a nominations agreement with a specific university, but has received support from London Loughborough, University College London, and University of the Arts London. If a nominations agreement is not entered into with one of these universities, the applicant proposes to provide accommodation to students in the local area on a direct let basis.

26 In accordance with paragraph 4.17.3 of the draft London Plan, the majority of bedrooms in the development must be covered by a nominations agreement. Therefore, the borough should ensure, through condition or legal agreement, that the development will, from the point of occupation, maintain a nomination agreement or enter a new nomination agreement with one or more higher education provider institution(s) for a majority of the bedrooms in the development, for as long as it is used as student accommodation.

27 In respect of the layout and functionality of the student accommodation, the development provides adequately sized study bedrooms (12.5 sq.m. as standard) with a large communal kitchen and living space for up to 10 apartments. 5% of (17 bedrooms) are provided as wheelchair accessible, in accordance with Building Regulations. A large proportion of the bedrooms are single aspect north facing, however, given that none of the communal living space are and all experience a good quality outlook, the layout is considered acceptable.

28 In accordance with paragraph 4.17.13, provided the proposed development meets all the requirements of part A of draft Policy H17 (the outstanding issue being the requirement for a nominations agreement), boroughs should not require on-site provision of, or a contribution towards, conventional Use Class C3 affordable housing. The affordable student accommodation offer is discussed in more detail in the following section of the report.

29 In respect of draft Policy H17 part B, the development has a PTAL level of 2. However, there is a considerable amount of work being undertaken and initiatives underway to improve the area's connectivity as described in the transport section of this report.

Affordable student housing

30 London Plan Policy 3.8 and the Mayor's Housing SPG seeks to ensure that boroughs do not constrain provision which meets strategic as well as local needs and seeks the development of student accommodation which is more affordable for the student body as a whole.

31 Draft London Plan Policy H17 states that to follow the Fast Track Route, at least 35% of the accommodation must be secured as affordable student accommodation or 50% where the development is on public land or industrial land appropriate for residential uses. In accordance with Policy H6, unless the scheme would result in a net loss in industrial floorspace capacity, the development would need to deliver 35% to be affordable housing to follow the Fast Track Route. Industrial floorspace capacity is defined as either the existing industrial and warehousing floorspace on site or the potential industrial and warehousing floorspace that could be accommodated on site at a 65% plot ratio, whichever is greater.

32 Currently, whilst the proposal would reprovide like for like industrial floorspace in terms of quantum, the scheme does not deliver sufficient yard space for servicing and deliveries and would deliver a significantly compromised industrial development. Therefore, in overall terms, the scheme would result in compromised industrial capacity and therefore triggers the 50% affordable housing threshold having regard to paragraph 6.4.5AA of the draft London Plan. However, should adequate, dedicated provision be made within the scheme for servicing the Fast Track Route could be followed at 35% and the scheme would not need to be subject to viability testing and a full viability assessment would not need to be submitted to the GLA for review.

33 The applicant has confirmed that the affordable student accommodation would be provided at a rental cost for the academic year equal to or below 55% of the maximum income that a new full-time student studying in London and living away from home could receive from the Government's maintenance loan for living costs for that academic year, in accordance with the provisions of the Housing SPG and the draft London Plan. The actual amount the Mayor defines as affordable student accommodation is published in the Mayor's Annual Monitoring Report. Accordingly, for the academic year 2018/19 the annual rental cost for affordable PBSA must not exceed £6,245.

34 The initial annual rental cost should not exceed this level but for the following years, the rental cost for this accommodation can be linked to changes in a nationally recognised index of inflation such as the Consumer Prices Index or CIPH (a new measure of consumer price inflation including a measure of owner occupiers' housing costs). A review period, such as every three years, could be set by the borough to allow for recalibrating the affordable student accommodation to the level stated as affordable in the Mayor's Annual Monitoring Report.

35 The affordable student accommodation would be equivalent to the non-affordable rooms in the development in terms of room sizes and room occupancy level. The rent charged must include all services and utilities which are offered as part of the package for an equivalent non-affordable room in the development. There should be no additional charges specific to the affordable accommodation. These provisions must be secured within the s106 agreement.

36 As the development is not proposed to be operated directly by a higher education provider institution, the affordable student accommodation bedrooms should be part of the student housing that is subject to a nominations agreement. In accordance with the draft London Plan, allocation of affordable student accommodation should be by the higher education provider which operates it or has the nomination right to it, and the provider should allocate the rooms to students it considers most in need of the accommodation.

37 Both early and late stage reviews would need be secured within the s106 agreement unless the scheme is amended such that it would be Fast Track Route compliant, in which case only an early implementation review would be required.

Urban design

38 The design principles in Chapter 7 of the London Plan and Chapter 3 of the draft London Plan require all developments to achieve a high standard of design which responds to local character, enhances the public realm and includes architecture of the highest quality that defines the area and makes a positive contribution to the streetscape and cityscape.

39 The quality of the architecture is high and responds positively to its context. The general layout principles of introducing two blocks separated by an area of shared public realm are supported. However, this space would perform a number of functions which, given the limited space available, is likely to give rise to pedestrian/ vehicular conflict. A more generous area of public realm is warranted given the shared nature of this space.

Heritage

40 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets in planning decisions; which should “have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.” In relation to conservation areas, ‘in the exercise of planning powers within a conservation area, the decision maker is required to pay special attention to the desirability of preserving or enhancing the character or appearance of that area’.

41 The NPPF states that when considering the impact of the proposal on the significance of a designated heritage asset, great weight should be given to the asset’s conservation; significance can be harm or loss through alteration or destruction of the heritage asset or development within its setting. Policy HC1 of the draft London Plan, like London Plan Policy 7.8, states that development should conserve heritage assets and avoid harm. A Heritage Assessment has been prepared by the applicant which assesses the development’s impact upon the adjacent Fish Island and White Horse Lane Conservation Area as well as unlisted buildings of merit within the vicinity. Overall, the GLA officers’ view is that the scheme is considered to enhance the setting of the non-designated heritage assets and Conservation Area and would therefore fully comply with the provisions of the NPPF, London Plan and draft London Plan.

Inclusive design

42 London Plan Policy 7.2 and draft London Plan Policy D3 require that all new developments achieve the highest standards of accessible and inclusive design and can be used safely, easily and with dignity by all; are convenient and welcoming with no disabling barriers; are flexible and response; and realistic. Overall, the scheme demonstrates a good standard of accessibility. A suitably sized fire evacuation lift within each lift core should be provided in accordance with Policy D3.

Environment

Energy

43 The applicant must provide the following additional information and revisions in order to confirm compliance with London Plan, draft London Plan policies and GLA Energy Assessment Guidance: investigating further measures to improve energy efficiency alone; undertaking dynamic overheating analysis for student accommodation, and ensure the cooling demand is

lower than the notional; further information needed on potential district heating connection and they should maximise the heat loads connected to their on-site heat network and further information about Heat pumps required, and the feasibility of PV should be reconsidered.

Water and flood risk

44 The approach to flood risk management for the proposed development generally complies with London Plan Policy 5.12 and draft London Plan Policy SI.12. However, the applicant should consider a more comprehensive range of flood resilience measures.

45 The surface water drainage strategy for the proposed development does not comply with London Plan Policy 5.13 and draft Policy SI.13, as it does not give appropriate regard to the drainage hierarchy and greenfield runoff rate. Further details on how SuDS measures at the top of the drainage hierarchy will be included in the development, and how greenfield runoff rate will be achieved should be provided. SuDS maintenance information should also be provided.

46 The applicant should consider water harvesting and reuse to reduce consumption of wholesome water across the entire development site in order to meet the requirements of London Plan Policy 5.15 and draft London Plan Policy SI.5.

47 The detailed technical comments have been sent to the applicant and the Council.

Urban greening

48 Urban greening should be embedded as a fundamental element of site and building design, in line with London Plan policy 5.10 and draft London Plan Policy G1 and G5. Features such as street trees, green roofs, green walls, rain gardens, wild flower meadows, woodland and hedgerows should all be considered for inclusion. The applicant should seek to ensure that the development would achieve an urban greening factor of 0.4, as set out in Policy G5 of the draft New London Plan.

Transport

Transport impact

49 The net impact of trips generated by this development would not be considered to have a significant impact on the public transport or strategic highway networks, however there is expected to be a significant impact in daily walking and cycling trips from the student uses to nearby campuses to be addressed, and the impact of student move in / move out days alongside other servicing uses on the local highway network will need to be managed accordingly.

Local connectivity and site design

50 There are ongoing proposals for local connectivity measures in the Hackney Wick / Fish Island area. The LLDC's emerging Hackney Wick masterplan proposes a north south spine running from a new access at Hackney Wick station across the Hertford Union Canal to Roach Road to the east of this site. Furthermore, as part of the Legacy Communities Scheme outline consent and subsequent reserved matters application, an all modes bridge, referred to as Bridge H14, and a new pedestrian / cycle bridge referred to as Bridge H16 are being constructed to the east of Monier Road which will connect to the Sweetwater delivery zone. There is ongoing work to explore and establish what action needs to be taken to facilitate the future mode of operation of Bridge H14, for example as a bus / cycle / pedestrian connection, and any amendments to the local highway network to enable this.

51 A Section 278 legal agreement should be agreed with Tower Hamlets Council to replace crossovers and reinstate and improve the footway adjacent to the boundary of the site, and any amendments to the off-street access, blue badge parking and on-street parking and loading bays to ensure ease of access to the site and all uses.

52 TfL will wish to discuss with the applicant and LLDC a contribution towards local public realm and wayfinding improvements in line with Healthy Streets approach and other applications in the area which would improve walk and cycle routes to the local campuses to the east of the site, and to enhance Cycleway 22 from Victoria Park via the Greenway to Newham Way.

Car and cycle parking

53 The scheme is car-free, except for four blue badge spaces, which supported and in line with draft London Plan standards.

54 The proposed volume of cycle parking does not meet the quantum required as set out in Table 10.2 of the draft London Plan for one space per studio and the quality of all double tier stands falls below the requirements of the London Cycling Design Standards. In both respects this is a failure to comply with Policy T5. The applicant should provide 330 long stay and 10 short stay student cycle parking spaces, as well as space for oversized bicycles and consider the matters set out above in relation to vehicular access and public realm. Commercial cycle parking is slightly above draft London Plan standards which is welcomed. Shower and storage facilities should also be provided within the development.

Conditions and obligations

55 An Estate Management Plan or similar should be prepared to address impacts of student move in and move out dates to minimise impact on the local highway network.

56 A Construction Management Plan (CMP) has been prepared, although further details of any impact for road or footway closures and any interface with construction on adjacent sites will be expected and secured via a condition. A Delivery and Servicing Plan and Travel Plan have also been prepared and full versions will need to be secured via condition and Section 106 agreement respectively. The electric vehicle charging points and a Car Park Design and Management Plan should also be secured by condition. On-street parking permits restrictions and prohibition of students from bringing a car to the site, should be secured within the s106 agreement.

Local planning authority's position

57 LLDC officers are current targeting committee in September.

Legal considerations

58 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008, the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

59 There are no financial considerations at this stage.

Conclusion

60 London Plan and draft London Plan policies on principle of development, housing and affordable housing, urban design, inclusive design, energy, drainage and water and transport are relevant to this application. The application does not yet fully comply with the London Plan and draft London Plan as set out below:

- **Principle of development:** The redevelopment of the site to provide student housing together with a net increase in industrial floorspace is supported subject to the applicant demonstrating that the introduction of student housing would not compromise the ongoing function of the industrial uses in and around the site and the student housing incorporates adequate mitigation against any adverse impacts. A dedicated loading bay area for the industrial building must be provided. The applicant is required to enter into a nominations agreement with a named Higher Education Provider.
- **Affordable student housing:** The development proposes 35% affordable student housing. Currently, the scheme would result in compromised industrial capacity whereby the Fast Track Route threshold would be 50%. As such the application would be subject to the Viability Tested Route with both early and late stage review mechanisms secured within the s106 unless a suitably sized dedicated loading bay area is provided.
- **Urban design:** The public realm 'yard space' should be increased in size is required to improve the quality and usability of this space.
- **Heritage:** The scheme is considered to enhance the setting of the non-designated heritage assets and adjacent Conservation Area.
- **Energy:** Further information and amendments are required to demonstrate compliance regarding: energy efficiency; dynamic overheating; district heating connection and heat pumps; and the feasibility of PV.
- **Drainage:** The applicant should consider a more comprehensive range of flood resilience measures; further details on how SuDS measures at the top of the drainage hierarchy will be included in the development, and how greenfield runoff rate will be achieved should be provided; SuDS maintenance information should also be provided; consideration should be given to water harvesting and reuse to reduce consumption of wholesome water across the entire development site.
- **Urban greening:** The applicant should seek to ensure that the scheme would achieve an urban greening factor of 0.4.
- **Transport:** A contribution to public realm improvements and wayfinding will be required. A section 278 agreement would need to be entered into to deal with changes to crossovers and footways. The cycle parking should be designed to London Cycle Parking Design standards and the cycle parking provision for the student element increased to provide 330 long stay and 10 short stay spaces, as well as space for oversized bicycles as well as site access and servicing matters. A plan should be prepared to manage the impact of students moving in and out days.

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